

Simtora Technologies GmbH

Germany HR Manual (Berlin)

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Introduction

This manual sets the employment terms for people who work for **Simtora Technologies GmbH**, the German subsidiary of Simtora Technologies, Inc., in the **Berlin R&D Center**. Berlin has about 18 employees and is the home of Simtora Shield engineering, security research and privacy engineering for the EU.

It sits within the framework of the Global People Supplement (SIM-HR-002). It replaces the U.S.-only parts of the HR Policy Manual (SIM-HR-001) for German employees (see 1.3).

German employment law is **detailed and employee-protective**. It is enforced by labor courts and, where a works council exists, by co-determination. Where this manual refers to a statute, the statute governs.

Principles

1. We follow German and EU law carefully, and in practice we **go beyond the minimum** where it benefits employees.
 2. Employees have a voice: we support a works council if employees want one.
 3. We record working time honestly and respect rest and Sundays.
 4. Data protection is a core value for a company that builds security and privacy products.
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Part 1 – Employer, Legal Framework and Scope

1.1 Employer and Scope

- The employer is **Simtora Technologies GmbH**, a limited liability company registered in the commercial register of Berlin. The **Managing Director (Geschäftsführer) of the Berlin R&D Center** represents the Company and leads the site.
- The manual applies to all employees, trainees and interns. It applies to freelancers only through their contracts (which HR and Legal review for false self-employment, *Scheinselbständigkeit*, risk).
- HR support: the International HR Lead and the Berlin HR partner (`hr-intl@simtora.example`). External payroll provider and employment counsel in Berlin support HR.

1.2 Legal Framework

Area	Main law
Contract and notice	German Civil Code (BGB) §§ 611 ff., § 622 (notice), § 623 (termination in writing), § 626 (termination for good cause)
Written terms	Evidence Act (NachwG)
Dismissal protection	Dismissal Protection Act (KSchG)
Working time	Working Time Act (ArbZG)
Annual leave	Federal Leave Act (BUrlG); Berlin Educational Leave Act (Bildungszeitgesetz)
Sick pay	Continued Remuneration Act (EFZG); Social Code V
Maternity and parental leave	Maternity Protection Act (MuSchG); Federal Parental Allowance and Parental Leave Act (BEEG)
Part-time and fixed-term	Part-Time and Fixed-Term Employment Act (TzBfG)
Equal treatment	General Equal Treatment Act (AGG)
Works council	Works Constitution Act (BetrVG)
Whistleblowers	Whistleblower Protection Act (HinSchG)
Data protection	GDPR; Federal Data Protection Act (BDSG); Telecommunications Digital Services Data Protection Act (TDDDG)
Health and safety	Occupational Safety and Health Act (ArbSchG); Workplace Ordinance (ArbStättV); Social Code VII (statutory accident insurance); Social Code IX (people with disabilities)
Inventions and copyright	Employee Inventions Act (ArbnErfG); Copyright Act (UrhG) § 69b
Minimum wage	Minimum Wage Act (MiLoG)
Agency workers	Temporary Agency Work Act (AÜG)

1.3 How the HR Policy Manual Applies in Germany

See SIM-HR-002 Section 1.2. In short:

- **Not applicable:** at-will employment, FLSA, paid holidays (6.1), PTO (6.2), sick and safe leave (6.3), FMLA (6.4), 401(k) and COBRA (6.9), resignation, termination, job abandonment (9.1–9.3). This manual replaces them.
- **Apply with changes in this manual:** onboarding (1.3), probation (1.4), pay (1.5), expenses (1.6), acceptable use and monitoring (1.9), attendance (2.2), corrective action (2.3), PIPs (2.4), accommodation (4.1), safety (4.3), hours and hybrid work (5.1–5.3), parental leave (6.5), equipment (7.4), travel (8.1), final pay and references (9.4–9.5).
- **Apply as written:** conduct (1.7), performance (2.1), grievances (3.1), anti-harassment (3.2), speaking up (3.3), dress code (5.4), relationships (5.5), bereavement (6.6), learning (7.1), mobility (7.2), recognition (7.3).

1.4 Local Authorities and Contacts

Subject	Body
Labor inspection and health and safety	State Office for Occupational Safety, Health and Technical Safety, Berlin (LAGetSi)
Statutory accident insurance	Professional association for administration (VBG)
Data protection	Berlin Commissioner for Data Protection and Freedom of Information
Employment Agency	Agentur für Arbeit (also for mass-dismissal notices)
Disability integration	Berlin Integration Office
Courts	Labor Court Berlin (<i>Arbeitsgericht</i>)
External whistleblower channel	Federal Office of Justice (<i>Bundesamt für Justiz</i>)

Part 2 – Hiring, Contracts and Probation

2.1 Recruitment, Right to Work and Background Checks

- Vacancies are posted with the **salary range** (SIM-HR-002 1.7); Simtora does not ask about salary history.
- Selection is on merit and free from discrimination under the AGG. Interview questions about pregnancy, family plans, religion, party or union membership and health are not asked.
- Simtora hires EU/EEA citizens and others with the right to work. For non-EU hires HR arranges the **EU Blue Card** or another residence permit for work; the employee may not start until it is valid.
- Background checks are limited: verification of qualifications with consent; a police clearance certificate (*Führungszeugnis*) only for roles that justify it. Health data is not requested.
- Applicant data is deleted **6 months** after rejection unless the candidate agrees to a longer period (to cover AGG claims).

2.2 Employment Contracts and Categories

- Every employee receives a **written, signed employment contract** (bilingual German/English) with the key terms required by the Evidence Act by the **first day of work**: parties, start date, place of work, job description, pay and components, working time, annual leave, notice, and the collective rules that apply. Changes need written form.
- Employment is **permanent** by default. **Fixed-term** contracts are used only where the TzBfG allows (an objective reason, or up to 2 years without a reason for someone never previously employed by the Company, with up to three extensions within that period). A fixed-term contract needs written form before work begins. Probationary periods are not set by a separate fixed-term contract.
- **Part-time** employees have the same rights pro rata.

- **Interns** under the Minimum Wage Act receive the minimum wage if the internship is longer than three months or not required for study; HR approves each one.
- **Agency workers** are used only through licensed agencies, with equal-pay obligations observed.

2.3 Probation

- **Probation is 6 months** from the start date (the legal maximum, § 622 (3) BGB). During probation either party may give **2 weeks' written notice** at any time.
- Under the Dismissal Protection Act, dismissal protection starts after **6 months** of service (where the establishment has more than 10 employees), so probation ends when that starts. A probation review (SIM-HR-001 Appendix C) is held at month 3 and month 5.
- A probation extension is not used; if concerns remain at month 5, HR and the manager decide whether to confirm or end the relationship before the period ends, with proper notice.
- During probation the employee has the same leave, sick pay and equal-treatment rights, with full pay from day 1 (the statutory 4-week waiting period for sick pay is waived).

2.4 Onboarding

Follow SIM-HR-001 1.3 and SIM-HR-002 Appendix C with these local steps: tax identification number (*Steuer-ID*), social insurance number and health insurance choice, bank details, church-tax declaration (optional), pension and company-pension enrollment, work-time recording introduction, health and safety instruction (ArbSchG), data-protection and confidentiality commitment, privacy and monitoring notice (8.2), and the Company equipment. Mandatory training (security, privacy, code of conduct, anti-harassment) within **30 days** of the start date, in English or German.

Part 3 – Working Time, Remote Work and

On-Call

3.1 Working Hours, Breaks and Rest

Item	Rule
Standard week	Monday to Friday, 8 hours a day, 40 hours a week
Core hours	10:00 a.m. to 3:00 p.m. Berlin time (CET / CEST)
Daily maximum	8 hours ; may be extended to 10 hours only if the average over 6 calendar months (or 24 weeks) does not exceed 8 hours a day
Breaks	At least 30 minutes if work exceeds 6 hours; 45 minutes if work exceeds 9 hours (divisible into blocks of 15 minutes or more); no more than 6 hours of work without a break
Daily rest	At least 11 consecutive hours between the end of one working day and the start of the next
Sundays and public holidays	No regular work. Work is permitted only in the cases ArbZG § 10 allows (for example, emergency incident response or necessary IT operations), with a replacement rest day within 2 weeks (Sunday) or 8 weeks (public holiday)
Flexibility	Start between 7:30 a.m. and 10:30 a.m. with the manager's agreement; trust-based working time (<i>Vertrauensarbeitszeit</i>) is used, but time is still recorded (3.2)

3.2 Time Recording and Overtime

- German courts require employers to **record working time systematically**. All Berlin employees record the **start, end and break times** each day in the HR system. Managers do not use the records to monitor individuals' minutes; HR uses them to check legal limits.

- **Overtime** (hours above the contractual 40 per week) must be ordered or approved by the manager in advance, except in an incident. Overtime is compensated by **time off in lieu** at 1:1 within **3 months**; the working-time account is capped at **+80 hours**; hours above the cap, or not taken within 3 months because the business prevented it, are **paid** at the hourly rate. Unapproved extra hours are never ignored: the manager must address them with the employee.
- The works council, if elected, has a right of co-determination on the start and end of working time, breaks and overtime (7.4).

3.3 Hybrid and Remote Work

- Hybrid by default: anchor days **Tuesday to Thursday**, minimum 3 office days a week (SIM-HR-001 5.2).
- Berlin law has no general right to work from home, and the Company has no general right to demand it. The work model is set in the contract or a written addendum, and in a works agreement if a works council exists.
- Remote work is **mobile work**. The employee must work from a safe place, follow the IT policy, and keep the same rest and time-recording rules. Statutory accident insurance covers work-related accidents at home.
- The Company provides the equipment, a one-time home-office allowance (EUR equivalent of US ~~500~~^{or}1,000) and a connectivity stipend (EUR equivalent of US \$75 a month), tax-free where German tax rules allow.
- Work from outside Germany is subject to SIM-HR-002 1.9; for work from other EU states, social-security and tax consequences are checked first.

3.4 On-Call, Sundays and Public Holidays

- Berlin employees take part in the follow-the-sun rota for **Shield services** during Berlin daytime and early evening. Regular on-call hours fall between **7:00 a.m. and 10:00 p.m.** Overnight on-call is only for Severity 1 backup, by agreement with the employee and, if a works council exists, under a works agreement.
- On-call (*Rufbereitschaft*) where the employee can stay at home or move freely is not working time except for actual call-outs. **Call-outs are working time**, and they interrupt the rest period: where a call-out interrupts the 11-hour rest, the full rest period starts again after the work ends, unless a short interruption is allowed under

ArbZG § 5 (3) and offset elsewhere. The manager adjusts the next day's start accordingly. Time-recording covers call-outs.

- **On-call allowance** (per rota week) is paid in EUR as set by the Compensation Committee and published on the intranet. Call-out time is paid as ordinary working time or compensated as time off, and counts against the daily and weekly limits.
- Work on a Sunday or public holiday is limited to cases ArbZG § 10 allows (3.1), with a replacement rest day.

3.5 Part-Time and Flexible Work

- After 6 months of service, an employee may ask to reduce their hours (TzBfG § 8; the Company has more than 15 employees), at least **3 months** in advance. The Company agrees unless operational reasons prevent it, and responds in writing within **1 month**.
 - During parental leave, an employee may work **15 to 32 hours a week** (5.4).
 - Employees may ask to return to full-time hours. The Company gives priority to part-time employees when a full-time role opens.
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Part 4 – Pay, Payroll, Tax and Social Contributions

4.1 Salary and Payment

- Salaries are in **euros (EUR)** and always at or above the statutory minimum wage and any applicable industry minimum.
- Pay is made **monthly** by bank transfer, on the **last working day of the month**, into a bank account in the SEPA area.
- A payslip (electronic) shows gross pay, income tax, church tax, solidarity surcharge (where due), social-insurance contributions and net pay.
- Pay is reviewed annually in the Company merit cycle; changes take effect on **April 1** (SIM-HR-001 1.5).

- Errors are corrected in the next pay run or, if more than EUR 500, by an off-cycle payment within 3 business days.

4.2 Deductions

Only deductions required by law (tax, social contributions, wage garnishments) or agreed in writing and permitted by law (for example, voluntary salary conversion for a company pension or bicycle leasing) are made. **No deductions for loss or damage of Company property.** If an employee is overpaid, HR agrees a repayment plan, taking account of the legal limits on recovery.

4.3 Tax and Social Insurance

Item	Rule
Income tax (<i>Lohnsteuer</i>)	Withheld monthly and paid by the Company to the tax office; employees receive an annual tax certificate
Social insurance	Employer and employee each pay their share of pension, health, long-term-care and unemployment insurance up to the statutory ceilings; the Company alone pays statutory accident insurance (VBG)
Health insurance	Employees are insured in a statutory fund or a private insurer (where above the threshold); the Company pays the legally required employer share
Reporting	The payroll provider files the required reports with social insurance carriers and the tax office
Foreign assignments	Social-security (A1) and tax treatment are agreed with Tax before any posting (SIM-HR-002 1.10)

4.4 Bonuses, Allowances and Equity

Item	Rule
Annual performance bonus	By plan document; payment terms drafted in line with German law on bonus clauses; no clause that makes an earned bonus conditional on being employed on a payment date after the earning period unless Legal confirms it is valid
Capital-forming benefit (<i>vermögenswirksame Leistungen</i>)	EUR 40 a month towards savings or a company pension plan for employees after probation
Home-office and connectivity	3.3
Learning budget	EUR equivalent of US \$1,500 a year and 40 hours of paid learning time, in addition to the Berlin educational leave in 5.5
On-call allowance	3.4
Equity	After Legal and Tax clear the German tax and securities treatment, including the rules on taxation of employee participations (SIM-HR-002 1.7)

4.5 Expenses and Business Travel

- Claims follow SIM-HR-001 1.6 and SIM-FIN-001 4.7, in EUR, within 30 days, paid within 10 business days. Receipts must meet German tax-invoice requirements.
- Business travel follows SIM-HR-001 8.1 with SIM-HR-002 1.8. Flights over 6 hours: economy or premium economy. Rail (*Deutsche Bahn*) is preferred for trips within Germany and to nearby countries when it takes less than 5 hours.
- Travel time during working hours is working time. Travel outside working hours is compensated by time off in lieu where it exceeds 2 hours in a day.

Part 5 – Leave and Holidays

5.1 Public Holidays

- Berlin has **10 public holidays** each year: New Year's Day, International Women's Day (March 8), Good Friday, Easter Monday, Labour Day (May 1), Ascension Day, Whit Monday, German Unity Day (October 3), Christmas Day and Boxing Day (December 26). The Berlin Senate can add a one-off holiday, which the Company follows.
- Simtora gives **December 24 and December 31** as additional paid Company days off. (If either falls on a weekend, no substitute day.)
- Employees are paid their normal pay for public holidays that fall on a working day. See Appendix B.

5.2 Annual Leave

Item	Rule
Entitlement	30 working days per calendar year (for a 5-day week). The statutory minimum is 20 days (24 on a 6-day week); the remaining 10 days are contractual. Employees with severe disabilities receive 5 additional days (Social Code IX). Part-time employees: pro rata.
Start	Leave accrues from day 1 (the statutory 6-month waiting period for full leave is waived); employees may use leave in the first 6 months in proportion to accrued days
Request	In the HR system; managers decide within 3 business days; the employee's wishes are considered unless business or other employees' wishes of higher priority conflict
Carry-over	Unused leave carries over to March 31 of the following year. Leave does not lapse unless the Company has written to the employee in good time (by October 1) telling them how many days remain and the date it would lapse, and asking them to use it. If the Company did not send the reminder, the leave does not lapse.
Long-term illness	Statutory leave of an employee who cannot take it because of illness lapses 15 months after the end of the year; HR informs the employee
Payment in lieu	Leave is not paid out while employment continues. At the end of employment unused leave is paid out (<i>Urlaubsabgeltung</i>) if it cannot be taken during notice
Pay during leave	Average pay of the last 13 weeks, including regular allowances
Illness during leave	Days of illness certified by a doctor are not counted as leave
Recommended	A continuous holiday of at least 2 weeks each year

5.3 Sick Leave and Sick Pay

Item	Rule
Notice	Tell your manager before the start of work on the first day (or as soon as possible), and the expected duration
Certificate	If sickness lasts more than 3 calendar days , the employee gets an electronic sick note (eAU) from the doctor for day 4 onward; the Company retrieves it electronically from the health insurer. The Company may ask for a certificate from day 1. Employees with private health insurance supply a paper or PDF certificate.
Continued pay	100% of pay for up to 6 weeks (42 calendar days) for each illness, from the first day of employment
After 6 weeks	Statutory sickness benefit (<i>Krankengeld</i>) from the health insurer (about 70% of gross, no more than 90% of net). After 12 months of service, the Company tops up the benefit to 100% of net pay for weeks 7 to 12 .
Workplace re-integration (BEM)	If an employee is unfit for work for more than 6 weeks in 12 months , the Company must offer a re-integration process (BEM). HR invites the employee in writing; participation is voluntary; the employee may bring a person of trust and the works council or disability representative if there is one.
Illness and termination	Employees are not dismissed for illness except after a lawful, fair process with BEM and legal advice
Medical data	Employers receive only the confirmation of inability to work and duration, never the diagnosis

Also: employees may attend doctor's appointments during work hours when they cannot reasonably be scheduled outside (with notice and as the contract states).

5.4 Maternity Protection, Parental Leave and Elternzeit

Maternity protection (MuSchG)

Item	Rule
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Simtora parental leave (SIM-HR-002 1.5)

Caregiver	Simtora benefit
Primary caregiver who gives birth	The statutory maternity protection period with supplement to 100% of net pay covers more than 12 weeks (up to 14 weeks), so the Company standard is met in full
Primary caregiver (adoption, or the other parent when they are the primary caregiver)	The Company tops up Elterngeld or pays so total income equals 100% of regular net pay for 12 weeks , taken within 12 months of birth or placement
Secondary caregiver	6 weeks at 100% of regular net pay , taken within 12 months of birth or placement, alone or together with Elternzeit

Eligibility for the Company-funded top-up: 6 months of service at the date of birth or placement. Statutory rights have no minimum service.

Parental leave (Elternzeit) and parental allowance (Elterngeld)

- Each parent can take up to **3 years' unpaid parental leave (Elternzeit)** per child, with job protection, which can be split into three periods (up to 24 months may be taken between the child's third and eighth birthdays). Notice: **7 weeks** before the start for leave before the child's third birthday, **13 weeks** for later periods.
- During Elternzeit an employee may work **15 to 32 hours a week** (part-time during parental leave). The Company agrees unless urgent operational reasons prevent it and responds within 4 weeks.
- **Elterngeld** (state parental allowance, about 65–67% of previous net pay up to a legal maximum, for up to 12 months, plus 2 more if both parents share) is paid by the Elterngeld office.
- The Company does **not** reduce annual leave for time spent on Elternzeit, although the law would allow a reduction of 1/12 for each full month.
- Dismissal is prohibited from the notice of Elternzeit (up to 8 weeks before it starts) until it ends.

5.5 Special Leave, Bereavement and Education Leave

Leave	Rule
Bereavement	5 paid days (spouse or partner, child, parent, sibling, grandparent, grandchild, household member); 3 paid days (other close relatives or friends)
Own wedding or registered partnership	2 paid days
Birth of own child (partner)	1 paid day in addition to the leave in 5.4
Moving house (employer-requested relocation)	1 paid day
Family emergency	Up to 5 paid days a year for urgent family needs (illness of a child, emergency care) in addition to statutory child sick leave under § 45 Social Code V, which is paid by the health insurer for the number of days set by law for the year
Public duties	Time off with pay for lay-judge duty, volunteer fire brigade, election work and similar public duties as the law provides
Berlin educational leave (<i>Bildungszeit</i>)	Employees working in Berlin may take 10 working days over 2 calendar years (an average of 5 days a year) for recognized education, with pay, in addition to annual leave. Application at least 6 weeks ahead; the Company may only refuse for urgent operational reasons or if the same course is requested by too many people.
Volunteer time	2 paid days a year
Unpaid leave	Up to 90 days with 12 months' service (SIM-HR-001 6.8)

5.6 Care Leave and Other Statutory Leave

- **Short-term care** for a close relative in an acute need: up to **10 working days** (employee entitlement; the care support allowance (*Pflegeunterstützungsgeld*) is paid by the care insurance).
 - **Care leave** (*Pflegezeit*): up to 6 months (companies with more than 15 employees) and **family care leave** (*Familienpflegezeit*) with reduced hours for up to 24 months (companies with more than 25 employees), under the Care Leave Act and the Family Care Leave Act; the Company applies the *Pflegezeit* rule to all employees.
 - **Military service and reserve exercises**: job protection under the Employment Security Act.
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Part 6 – Benefits and Retirement

6.1 Statutory Social Insurance

All employees are covered by statutory social insurance (pension, health, long-term care, unemployment, accident). The Company pays the employer share and registers employees with the carriers. HR explains the choice of health insurance at onboarding.

6.2 Company Pension

- Employees have a **statutory right to convert part of their pay into a company pension** (*Entgeltumwandlung*). The Company adds at least the **15% employer subsidy** required by law on the converted amount and pays **20%**.
- After probation the Company also pays a **3% of gross monthly salary** employer contribution to the company pension plan.
- Vesting: contributions vest immediately by law for the employee's own deferred pay and the Company subsidy; the Company's 3% vests after 3 years of service (or earlier as law requires).

- The plan administrator provides yearly statements.

6.3 Other Benefits

Benefit	Detail
Public-transport ticket	The Company pays 100% of the Deutschlandticket (tax-free benefit)
Bicycle leasing	Optional through salary conversion
Supplemental health cover	Dental and vision supplement through a group insurance, paid by the Company
Screen-work eye care	The Company offers an eye examination for screen work (ArbMedVV) and pays for glasses specifically for screen work where the examination shows they are needed
Group accident insurance	Company-paid, in addition to the statutory accident insurance
Wellness stipend and Employee Assistance Program	In EUR; counseling in German and English
Meals	Shared lunch on anchor days (taxed as the law requires)
Equipment	Laptop and peripherals (SIM-HR-001 7.4)
Recognition	7.3 of SIM-HR-001, amounts in EUR

Part 7 – Equality, Respect, Employee Voice and Speaking Up

7.1 Equal Treatment (AGG)

- The General Equal Treatment Act prohibits discrimination on grounds of **race or ethnic origin, sex, religion or belief, disability, age and sexual identity**. Simtora's standard goes further (SIM-HR-002 1.4): it also covers gender identity and expression, family status, nationality, political opinion and other grounds.
- The Company makes **reasonable adjustments** for disability, supports return to work through BEM (5.3) and complies with duties relating to severely disabled employees under Social Code IX, including involvement of the representative for severely disabled employees if elected and the Integration Office where required.
- **Complaints office.** Under § 13 AGG the Company's designated complaints office is the **Berlin HR partner**, supported by the Ethics Line. Employees can complain without fear of retaliation. The Company examines the complaint, informs the complainant of the result and takes appropriate action.
- Claims under the AGG must generally be asserted in writing within **2 months** and in court within **3 months** of that; the Company does not discourage employees from using these rights.
- **Pay transparency.** Simtora publishes pay ranges and conducts its annual pay-equity analysis, although the legal right to information under the Pay Transparency Act applies only to employers with more than 200 employees.

7.2 Harassment

Bullying and sexual harassment are prohibited (SIM-HR-001 3.2; AGG § 3). Employees may complain to the HR partner, the complaints office, the works council (if elected), the Ethics Line or the Audit Committee. Complaints are acknowledged within **2 business days**. The Company has a duty to take measures to stop harassment, such as warnings, transfers or dismissal, and to protect complainants. Employees may refuse to work (without losing pay) if the Company takes no action to stop serious harassment (AGG § 14). Compliance is informed of every case (SIM-CMP-001 2.4).

7.3 Grievances

An employee has the right to complain to the competent office of the Company if they feel treated unfairly (§ 84 BetrVG), and may involve a member of the works council. The Company responds in writing within **15 working days** and does not retaliate.

7.4 Works Council

- Employees in any workplace with **5 or more permanent employees** may elect a **works council (*Betriebsrat*)**. The Company will not obstruct, discourage or retaliate against anyone who proposes or runs for election. Initiators and candidates have special protection against dismissal.
- **If a works council exists**, it has the following rights under the Works Constitution Act and the Company will respect them:
 - **Co-determination (§ 87 BetrVG)**: start/end of working time, breaks, distribution of hours, on-call arrangements, overtime, vacation principles, **technical systems that can monitor behavior or performance** (this includes the monitoring in SIM-IT-001 4.8), rules of conduct, payment methods and many pay structures, and health and safety rules.
 - **Information and consultation**: hiring and personnel planning; staffing changes; reorganizations (at larger sizes).
 - **Hearing before every dismissal (§ 102 BetrVG)**: the Company must inform the council before a dismissal and the reasons; **a dismissal without a proper hearing is void**.
 - **Involvement in hiring and transfers (§ 99 BetrVG)** applies where the Company has more than 20 employees with voting rights.
- **If there is no works council**, the Company still gives employees written notice of material changes and consults them, and may agree rules by individual agreement. HR checks with employment counsel before introducing new monitoring tools or working-time rules.
- **Employee forum**. Whether or not a council exists, the Managing Director holds an employee forum twice a year.

7.5 Speaking Up (Whistleblower Protection Act)

- Employees may report violations of law, such as fraud, corruption, data-protection violations or safety risks, through the **Ethics Line** (`ethics@simtora.example` , anonymous reports accepted). The Company **acknowledges within 7 calendar days** (Company standard: 5 business days) and gives **feedback within 3 months**, as the Whistleblower Protection Act (HinSchG) requires. Reports are kept confidential.

- Employees may also report externally to the Federal Office of Justice or other competent authority.
 - **Retaliation is prohibited** and the burden of proof shifts to the Company if a disadvantage follows a report.
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Part 8 – Safety, Privacy and Intellectual Property

8.1 Health and Safety

- The Company does a **risk assessment** (*Gefährdungsbeurteilung*) of every workstation and activity, including psychological stress, and repeats it when conditions change (ArbSchG). The risk assessment includes mobile work.
- An external **occupational physician** and **safety specialist** advise the Company. **At least 2 first aiders** are trained and available; a safety officer is appointed when the site exceeds 20 employees (SIM-FAC-001).
- Offices follow the Workplace Ordinance: temperature, ventilation, lighting, ergonomic workstations. Employees report injuries the same day; the Company reports workplace accidents that lead to more than 3 days of absence to the accident insurer (VBG) as the law requires.
- Statutory accident insurance covers commuting and work-related accidents, including at home while working.
- The Company meets the requirements for pregnant or breastfeeding employees (5.4) and young people.
- Emergency numbers: **112** (fire, ambulance) and **110** (police), plus the site security line.

8.2 Data Protection, Monitoring and Records

- Employee data is processed under the **GDPR and BDSG § 26**, mainly for the employment contract, legal duties or legitimate interests (not consent, except where it is truly voluntary). The Berlin team receives the privacy notice at onboarding.

Employee data transfers to the U.S. rely on EU standard contractual clauses and, where available, the EU–U.S. Data Privacy Framework.

- **Data Protection Officer.** The Privacy Lead acts as Group DPO (`privacy@simtora.example`). Employees may contact the DPO confidentially.
- **Rights.** Employees may ask for access, correction, deletion, restriction and portability of their data; the Company responds within **one month**.
- **Monitoring** under SIM-IT-001 4.8 is limited: security logging and device management, not behavior or performance monitoring of individuals. Any technology that could monitor behavior or performance needs a **works council agreement** (if a council exists) and a data-protection impact assessment. **Covert monitoring is prohibited** except to investigate a specific suspected serious breach with Legal, HR and DPO approval and the works council's involvement where required.
- **Private use of IT.** Private use of the Company email account is **not permitted**, which avoids telecommunications-secrecy obligations. Limited private web use on Company devices is allowed during breaks. The Company does not read private content.
- **Records.** Applicant data: 6 months; personnel file: 3 years after exit (for limitation periods) except for items required for longer; payroll and tax-relevant records: **6 to 10 years** as tax and commercial law require; working-time records: at least 2 years. Employees may inspect their personnel file.

8.3 Confidentiality, Inventions, Copyright and Restrictive Covenants

- **Confidentiality** applies during and after employment (SIM-HR-001 1.8).
- **Software and works:** copyright in computer programs created by an employee in the course of duties passes to the employer by law (§ 69b UrhG). For other works, the employee grants the Company and its parent exclusive rights of use sufficient for the Company's business. Moral rights in Germany cannot be assigned; the employee agrees not to exercise them in a way that interferes with use.
- **Employee inventions:** employees must **report every service invention** in writing without delay (ArbnErfG). The Company claims service inventions (a claim is deemed made if the Company does not release the invention within 4 months of the report) and assigns rights to Simtora Technologies, Inc. The employee receives **remuneration** under the Act's guidelines, or an agreed lump sum.

- **Post-employment non-compete.** Only if agreed in writing, tied to a legitimate interest, limited to **2 years**, and with **compensation of at least 50%** of the employee's last contractual benefits for each year (§ 74 Commercial Code). The Company can waive it. Non-solicitation of employees for up to 12 months is acceptable; of customers it follows the same limits. Legal approves any covenant.
 - **Protected rights:** nothing restricts reports under the Whistleblower Protection Act or communications with authorities.
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Part 9 – Performance, Discipline and Separation

9.1 Performance Management

SIM-HR-001 2.1 applies: objectives, one-to-ones, mid-year and annual review, and calibration. A works council (if elected) co-determines general assessment principles. A performance improvement plan lasts **60 to 90 days** with a goal, support, and regular reviews. Employees may bring a colleague (or the works council member) to formal meetings.

9.2 Warnings (*Abmahnung*) and Discipline

- For **misconduct that can be corrected** (for example, repeated lateness, breach of rules), a formal written **warning (*Abmahnung*)** is normally required before the Company can lawfully dismiss for the same type of conduct. The warning must describe the conduct precisely, state that it breaches the contract, and warn that continued conduct may end employment.
- The employee is heard before the warning and may reply in writing; the reply is attached to the personnel file.
- A works council (if elected) is informed of a warning if collective rules require; it is always involved in a dismissal (7.4).

- Warnings are removed from the file when they are no longer relevant (normally after 2 years of good conduct), or earlier if wrongful.
- Suspension is a serious measure; where used it is with pay.
- HR and employment counsel must review a warning and a dismissal before it is delivered.

9.3 Resignation

- An employee gives **written notice**, either by signed letter or other form the contract allows. Under § 623 BGB a resignation must be in writing with a handwritten signature; the Company confirms receipt in writing.
- **Notice period:** during probation **2 weeks**; afterward **3 months to the end of a calendar month**. The employee's notice is never longer than the Company's, so the periods in 9.4 for longer service bind only the Company.
- The Company may release the employee with pay, or agree an earlier end date. Leave is taken or paid (5.2). A handover plan is agreed (SIM-HR-001 9.1).

9.4 Termination by the Company

- **Form.** Termination must be in **writing with a handwritten signature** (§ 623 BGB), signed by the Managing Director or an authorized person, and delivered in person (with a receipt) or by courier. **Email or electronic signature is not valid.**
- **Notice period.** During probation, 2 weeks. After probation, **3 months to the end of a calendar month**, or the longer statutory period for the Company where the BGB gives one (after 8 years of service: 3 months; 10 years: 4 months; 12 years: 5 months; 15 years: 6 months; 20 years: 7 months, all to the end of a calendar month).
- **Dismissal protection (KSchG).** After 6 months of service in an establishment with more than 10 employees (counting part-timers pro rata), a dismissal is valid only if **socially justified**: for reasons relating to the person (for example, long-term illness after BEM), conduct (after a warning, unless the breach is serious), or urgent operational reasons (with social selection based on length of service, age, support obligations and severe disability, and a search for another suitable job).
- **Before any dismissal:** HR and employment counsel review it. If a works council exists, **hear the council in writing** with all reasons (§ 102 BetrVG). The Company checks

special protection (pregnancy, parental leave, severe disability — approval of the Integration Office, works council members, DPO, caregiver leave, etc.). The Company informs the employee of their duty to register with the Employment Agency as a job seeker **within 3 days of receiving notice** (§ 38 Social Code III).

- **Dismissal for good cause (*fristlos*, § 626 BGB).** Only for a serious reason and where continuing to employ the person until the end of notice is unreasonable; the notice must be given **within 2 weeks** of the Company learning the relevant facts; the employee is heard first.
- **Appeal.** The employee may bring a **dismissal protection action** to the labor court **within 3 weeks** of receiving the written notice; otherwise the dismissal generally becomes valid. HR tells the employee of this deadline in the letter.
- **Severance.** Not a legal right unless a social plan or agreement says so. If the Company offers a severance payment in return for not suing, the common guide is **0.5 of a monthly gross salary per year of service**. Termination agreements (*Aufhebungsvertrag*) are explained in writing: employees are told of possible effects on unemployment benefit (waiting period) and are given at least **7 days** to consider.
- **Collective dismissals** (§ 17 KSchG) require notification to the Employment Agency and consultation with the works council above the legal thresholds (more than 5 dismissals in establishments with 21 to 59 employees within 30 days).
- **Fixed-term end:** the contract ends automatically; the Company informs the employee of the duty to register as a job seeker 3 months before.

9.5 Final Pay, References and Offboarding

Item	Rule
Final pay	On the last working day of the month, as normal pay, plus payment of unused leave (5.2) and any earned bonus per the plan; accrued time-off balance is taken or paid
Work certificate	The employee has the right to a written reference (<i>Arbeitszeugnis</i>) : a <i>qualified</i> reference (assessing performance and conduct) or a simple one on request. It is truthful and benevolent, issued within 2 weeks of the last day (earlier on request, and an interim reference at any time for good reason)
Documents	Tax certificate, social insurance certificate, certificate of leave taken, proof of employment for the Employment Agency (electronic), pension information
Company property	Returned by the last day; no wage withholding
Access	IT removes access at or before the end of employment (SIM-IT-001 3.3)
Exit interview	Offered
Records	Retention as in 8.2

Part 10 – Local Practices

10.1 Working with Berlin and U.S. Teams

Berlin is 9 hours ahead of San Francisco (8 or 9 hours depending on daylight-saving periods). The best shared window is **8:00–9:30 a.m. Pacific = 5:00–6:30 p.m. Berlin**, and no meetings are scheduled for Berlin staff after **7:00 p.m.** except in an incident. Berlin colleagues are not asked to take late-evening calls routinely. Teams rotate early-morning slots with Sydney and Lahore (SIM-HR-002 1.6).

10.2 Language and Culture

English is the working language. German classes are available as a Company benefit (up to 40 hours a year, in addition to the learning budget). Colleagues use first names. Quiet hours on Sundays and public holidays are respected.

10.3 Berlin Specifics

- Employment disputes go to the Berlin labor court; the Company prefers mediation or conciliation.
 - Bridging days: the Company's December 24 and 31 are Company days off.
 - In a hot summer (indoor temperature above 26°C), the Company takes measures; above 30°C the workplace requires relief (SIM-FAC-001).
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Appendices

Appendix A – Key Terms Summary and Acknowledgement

Item	Summary
Employer	Simtora Technologies GmbH
Hours	Mon–Fri, 8 h/day, 40 h/week; recorded
Probation	6 months; 2 weeks' notice
Notice after probation	3 months to month-end (both sides)
Annual leave	30 days; carry-over to March 31 with reminder
Public holidays	10 (Berlin) + Dec 24 and Dec 31
Sick pay	100% for 6 weeks; top-up weeks 7–12 after 12 months
Parental	Maternity protection with supplement; Elternzeit; Company top-up to 12/6 weeks
Pension	Company pension 3% + subsidy on conversion
Works council	Employees may elect one
Termination	Written, wet-ink signature; 3 weeks to sue

Acknowledgement. I have received this Germany HR Manual (version __) and my employment contract. I understand that the Company processes my data as described in the privacy notice, and that nothing in this manual restricts my statutory rights, my right to elect or work with a works council, or my right to report wrongdoing.

Employee name (print)	
Signature	
Date	
Employee ID / Role	

Appendix B – Public Holiday Calendar Rules

Holiday	Date
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Appendix C – Statutory Deadlines

Item	Deadline
Sick-note after day 3	From day 4
Whistleblower acknowledgement / feedback	7 days / 3 months
Data-subject request response	1 month
Employee's action against dismissal	3 weeks from receipt
Employee's registration with Employment Agency	Within 3 days of notice
Extraordinary termination	Within 2 weeks of learning facts
Elternzeit notice	7 weeks (before age 3) / 13 weeks
Leave reminder	By October 1
Leave carry-over	March 31
AGG claims	2 months written / 3 months court
Reference	2 weeks after last day

Appendix D – Revision History

Version	Date	Author	Summary of change	Approved by
1.0	October 5, 2026	HR	Initial release	CEO (October 5, 2026)

End of document – SIM-HR-102